Mutual Non-Disclosure Agreement

TEMPLATE — Form fields in [BRACKETS] must be completed before execution.

This Mutual Non-Disclosure Agreement (this "Agreement") is entered into as of [DATE] (the "Effective Date") between:

(1) écentic shpk, a limited liability company incorporated under Albanian Law No. 9901 ("écentic"); and

(2) [COUNTERPARTY LEGAL NAME], a [JURISDICTION/ENTITY TYPE] ("Counterparty").

Each a "Party" and together the "Parties".

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1. Purpose

The Parties wish to discuss [DESCRIBE PURPOSE — e.g., a potential commercial relationship, pilot project, investment, partnership, acquisition] (the "Purpose"), and in connection with the Purpose may disclose to one another certain non-public, confidential, or proprietary information.

2. Definition of Confidential Information

"Confidential Information" means any information disclosed by one Party (the "Disclosing Party") to the other (the "Receiving Party"), whether before or after the Effective Date, whether orally, in writing, electronically, or in any other form, that is either marked or identified as confidential at the time of disclosure or that a reasonable person would understand to be confidential given the nature of the information and circumstances of disclosure. Without limiting the foregoing, Confidential Information includes: business plans, financial information, customer lists, pricing, product roadmaps, source code, technical architecture, trade secrets, datasets, simulation methodologies, optimization algorithms, security practices, employee information, and any analyses or notes derived therefrom.

3. Exclusions

Confidential Information does not include information that the Receiving Party can demonstrate:

was already known to it without restriction at the time of disclosure;

was or becomes publicly available through no fault of the Receiving Party;

was independently developed by it without use of or reference to the Disclosing Party's Confidential Information; or

was rightfully received by it from a third party without confidentiality restriction.

4. Obligations

The Receiving Party shall:

hold the Disclosing Party's Confidential Information in strict confidence;

use it solely for the Purpose;

protect it with at least the same degree of care it uses to protect its own confidential information of similar sensitivity, and in no event less than a reasonable standard of care;

disclose it only to those of its employees, contractors, professional advisers, and affiliates who have a legitimate need to know for the Purpose and who are bound by confidentiality obligations no less protective than those in this Agreement; and

not reverse-engineer, decompile, or disassemble any software or technology disclosed under this Agreement.

5. Required disclosures

If the Receiving Party is required by law, regulation, or court order to disclose Confidential Information, it shall (unless prohibited by such law or order) promptly notify the Disclosing Party so that the Disclosing Party may seek a protective order or other appropriate remedy. The Receiving Party shall disclose only that portion of the Confidential Information that is legally required and shall use reasonable efforts to obtain confidential treatment for it.

6. Ownership; no licence

All Confidential Information remains the property of the Disclosing Party. Nothing in this Agreement grants the Receiving Party any licence, right, or interest in or to any Confidential Information or any intellectual property of the Disclosing Party, by implication, estoppel, or otherwise.

7. No warranty

Confidential Information is provided “as is”, without warranty of any kind, including warranties of accuracy, completeness, merchantability, or fitness for a particular purpose. Neither Party shall be liable for any decisions made by the other Party in reliance on Confidential Information disclosed under this Agreement.

8. Term

This Agreement commences on the Effective Date and continues for a period of **two (2) years** from the Effective Date, unless earlier terminated by mutual written agreement. The confidentiality obligations in Sections 4 and 5 shall survive termination of this Agreement for an additional period of **three (3) years**, except with respect to trade secrets, which shall be protected for so long as they retain trade-secret status under applicable law.

9. Return or destruction

Upon written request of the Disclosing Party (and in any event on termination of this Agreement), the Receiving Party shall promptly (and in any event within thirty (30) days) return or destroy all Confidential Information of the Disclosing Party in its possession, including all copies, notes, and derivatives, and certify such return or destruction in writing. The Receiving Party may retain one archival copy in its legal files solely for record-keeping purposes, subject to continued application of this Agreement.

10. Remedies

The Parties acknowledge that a breach of this Agreement may cause irreparable harm for which monetary damages would be inadequate. Accordingly, each Party shall be entitled to seek injunctive relief in addition to any other available remedies, without the requirement to post a bond or prove actual damages.

11. No obligation; no solicitation forbidden

Nothing in this Agreement obliges either Party to enter into any further business relationship. This Agreement does not restrict either Party from independently developing, acquiring, or marketing products or services that may be competitive with those of the other Party, provided no Confidential Information of the other Party is used.

12. Governing law and jurisdiction

This Agreement shall be governed by and construed in accordance with the laws of the **Republic of Albania**, without regard to its conflict-of-law provisions. The Parties submit to the exclusive jurisdiction of the competent courts of Tirana, Republic of Albania, for any dispute arising out of or in connection with this Agreement, except that either Party may seek interim or injunctive relief in any court of competent jurisdiction.

13. Miscellaneous

Entire agreement. This Agreement constitutes the entire understanding between the Parties with respect to its subject matter and supersedes all prior discussions and writings.

Amendment. Any amendment must be in writing and signed by both Parties.

Waiver. No failure or delay in exercising any right under this Agreement shall constitute a waiver.

Severability. If any provision is found unenforceable, the remaining provisions shall remain in full force.

Assignment. Neither Party may assign this Agreement without the prior written consent of the other, except in connection with a merger, acquisition, or sale of substantially all assets.

Counterparts. This Agreement may be executed in counterparts, including by electronic signature, each of which is deemed an original.

IN WITNESS WHEREOF, the Parties have executed this Mutual Non-Disclosure Agreement as of the Effective Date.

écentic shpk

By: _____ Name: [SIGNATORY NAME] Title: [TITLE] Date: _____

[COUNTERPARTY LEGAL NAME]

By: _____ Name: [SIGNATORY NAME] Title: [TITLE] Date: _____